The court may order injunction in the following cases –

(a) if the contract is voidable.

(b) if the contract becomes void or

(c) on discovering the contract as void.

(iv) Claim for Quantum Merit

The claim for quantum merit may arise if a contract performed by one party has become discharged by breach of the other party. The meaning of the phrase quantum merit is 'as much as earned'. The claim is not for the original contract that has been discharged or void, but on an implied promise by the other party to pay for what he has done.

Quantum merits arises in the following circumstances.

a) If a contract is found to be void.

b) If something is done without any intention to do so gratuitously.

c) If one party abandons or refuses to perform the contract.

d) If a contract is divisible.

e) If a contract is performed badly.

(v) Claim for damages

Damages are a monetary compensation awarded by the court to the injured party for the loss or injury suffered by him. As per contract, one party can claim damages if other party breach the contract. The main purpose of awarding the damages is to make good the loss suffered by him. It is known as doctrine of restitution. The Section 73 of the Indian Contract Act, 1872 deals with the compensation for loss or damages caused by a party for breach of contract. There are mainly four types of damages, such as-

i) Ordinary damages

ii) Special damages

iii) Vindictive or exemplary damages and

iv) Nominal damages.

Key Terms

Breach of Contract	Rescission
Restitution	Novation
Injunction	Remission



For Own Thinking

1 To draw inference about the nature of contract and legal ways of discharging it

2. To understand the modes of discharge of contract



For Future Learning

1. To interpret the consequence of breach of performance of contract

2. Illustrate with example the modes of discharge of contract and if not discharged, the consequences

3. To foresee the suitability of remedies for breach of contract violation of which leading to legal consequences

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